

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JAROD NABORS AND RAHMAN SOTO,

Plaintiffss,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER DANNY
BERMEO, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH FOUR,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiffs designates New York
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffss' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 25, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiffs
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Danny Bermeo, 13th Precinct, 230 East 21st Street, New York, NY 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JAROD NABORS AND RAHMAN SOTO,

INDEX NO.:

Plaintiffss,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER DANNY
BERMEO, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH FOUR,

JURY TRIAL DEMANDED

Defendants.

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Plaintiffss Jarod Nabors and Rahman Soto, by their attorneys, Jacobs & Hazan, LLP, as
and for his Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffss' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 25, 2016 at approximately 10:30 p.m. Plaintiffss Jarod Nabors and Rahman Soto were lawfully present inside of a stairwell of an apartment building located at 344 East 28th Street, New York, New York, filming an episode for the YouTube series "Here's 2 The Throne," when they were unlawfully, stopped, questioned, frisked, falsely arrested/ imprisoned, assaulted and battered, unlawfully searched, unlawfully seized, had their property damaged, were assaulted, battered and subjected to the use of excessive force by the individually named defendant New York City Police Officers, without reasonable suspicion or probable cause to believe claimant was committing any crime. Plaintiffss were unlawfully detained at the 13th Precinct for several hours before they were transported to New York County Central Booking whereat their unlawful detention continued until approximately 7:00 pm on February 26, 2016 when they were released from custody without being charged with a crime after the New York County District Attorney's Office Declined to Prosecute Plaintiffss because the District Attorney's Office was unable to establish that Plaintiffss committed certain elements of the crime. Plaintiffss were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested/ imprisoned, damaged Plaintiffss' property, assaulted, battered, and used excessive force against Plaintiffss in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiffs Jarod Nabors is a resident of the state of New York.

3. Plaintiffs Rahman Soto is a resident of the state of New York.

4. Defendant Police Officer Danny Bermeo, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. Defendant Police Officer Danny Bermeo is and was at all times relevant herein, assigned to the 13th Precinct.

6. Defendant Police Officer Danny Bermeo is being sued in his individual and official capacities.

7. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. Police Officers John Does #1-4 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiffss in furtherance of their causes of action brought pursuant to New York State law file timely Notices of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and in accordance with New York State law, on February 6, 2017 Plaintiffss testified at a hearing held pursuant to General Municipal Law Section 50-H.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiffss have both sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. By way of background, on February 25, 2016 were lawfully present inside of the apartment building located at 228 East 28th Street, New York, New York, because they were filming the YouTube series "Here's 2 The Throne."

16. Plaintiffss were invited into the building as lawful guests of a building tenant, and when the Plaintiffss initially arrived in the building they filmed inside the YouTube series inside of her apartment, without incident.

17. When Plaintiffss entered the apartment building on February 25, 2016 they notified the security guard stationed near the front entrance of the building that they intended to film the YouTube series at various locations within the building that day, and the security guard gave them permission to proceed in that manner.

18. After Plaintiffss completed filming a scene for the YouTube series inside of the tenant's apartment, they proceeded to exit the apartment and enter the stairwell located near the apartment to begin filming another scene.

19. February 25, 2016 at approximately 10:30 p.m., Plaintiffss were lawfully inside 228 East 28th Street, New York, New York, in a stairwell located in the vicinity of the 26th floor of the building, lawfully filming the YouTube series "Here's 2 The Throne," when the individually named defendant police officers suddenly appeared in the stairwell from a floor above where Plaintiffs's were filming.

20. The officers observed Plaintiffs's cameras set up in the stairwell and people acting out a scene, and reasonable police officers should have concluded that the Plaintiffss were engaged in filming, and not committing a crime or violating the law in any manner.

21. However, instead of interacting with Plaintiffss in a polite manner, the officers immediately proceeded to unlawfully, stop, question, frisk, falsely arrest/ imprisoned, assault, batter, destroy the property of, unlawfully searched, and unlawfully seized Plaintiffss, without reasonable suspicion or probable cause to believe claimant was committing any crime.

22. The officers used unreasonable force while they were handcuffing and arresting Rahman Soto by pushing him against the door and its doorknob in the stairwell, without reason to push Mr. Soto at all, causing claimant pain to body, including his back.

23. The police officers also damaged the camera equipment owned by Plaintiffs Jarod Nabors while they were falsely arresting Plaintiffss.

24. The tenant of the building that invited Plaintiffss into the building advised the defendant police officers that she was a tenant of the building, that she invited Plaintiffss into the building, and that they were just filming a scene for a YouTube series,

25. Nevertheless, Plaintiffss were unlawfully handcuffed by the defendant police officers and transported to the 13th Precinct station house where the officers proceeded to unlawfully interrogate Plaintiffss about their knowledge of other crimes the officers alleged occurred in the area.

26. Plaintiffss were detained in a holding cell at the 13th Precinct for many hours until the officers transported them to New York County Central Booking at approximately 4:00 am. on February 26, 2016.

27. Plaintiffss were unlawfully detained at New York County Central Booking until approximately 7:00 pm on February 26, 2016 at which time they were released from custody without being charged with a crime after the New York County District Attorney's Office declined to prosecute claimant because they were unable to establish necessary elements of the crimes.

28. At no time prior to stopping Plaintiffss did the defendant police officers have any objective factual basis to believe Plaintiffss had committed a crime, were about to commit a crime, or were in the process of committing a crime.

29. At no time did Plaintiffs commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime.

30. At no time relevant herein were Plaintiffss found to be in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe Plaintiffss possessed drugs, weapons, or contraband of any kind.

31. Plaintiffss knew that they had not violated any law, and Plaintiffss felt as though the officers were harassing them without any legal justification to seize them.

32. At no time relevant herein did Plaintiffss commit a crime, nor did the defendant police officers have any reason to believe they committed a crime.

33. Some of the police officer defendants observed the violation of Plaintiffs's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, damaging of Plaintiffs's property, and use of excessive force against Plaintiffss.

34. The unlawful stop, question, frisk, search, false arrest, false imprisonment, damage to property, assault, battery, and the use of excessive force against Plaintiffss by the

individually named defendants caused Plaintiffss to sustain physical, economic, psychological and emotional trauma.

35. As a direct and proximate cause of the officers unlawfully damaging Plaintiffs Jarod Nabors' camera equipment he had to spend approximately \$1860.83 to replace and/or repair the equipment that was damaged.

36. Plaintiffs Rahman Soto suffered from additional emotional and psychological damages because his wife left him and took his child with her because he was arrested on February 25, 2016.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment, and Fourteenth Amendment Rights

37. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiffss to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned and had their property destroyed without probable cause in violation of Plaintiffss' right to be free of an unreasonable seizure and seizure of his property under the Fourth of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffss and, in fact, confined Plaintiffss, and Plaintiffss were conscious of the confinement. In addition, Plaintiffss did not consent to the confinement and the confinement was not otherwise privileged.

41. As a direct and proximate result of such acts, defendants deprived Plaintiffss of their rights under the laws of the State of New York and the United States Constitution.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*

44. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

45. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiffss' freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching, Plaintiffss were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived Plaintiffss of their rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*

51. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

52. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search of Plaintiffss' pockets, employed by defendants herein terminated Plaintiffss' freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search Plaintiffss.

55. As a direct and proximate result of such acts, defendants deprived Plaintiffss of their rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

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FIFTH CAUSE OF ACTION

Violation of Plaintiffs's Fourth And Fourteenth Amendment

Rights

59. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The use of excessive force by defendants by throwing them against the wall and the handle to the door was an objectively unreasonable physical seizure of Plaintiffss in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

61. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SIXTH CAUSE OF ACTION

Assault

62. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, and that such acts caused apprehension of such contact in the Plaintiffs.

64. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*

SEVENTH CAUSE OF ACTION

Battery

66. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffss, when they, in a hostile and/or offensive manner struck Plaintiffss without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffss and caused such battery.

68. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*

EIGHTH CAUSE OF ACTION**Failure to Intervene**

70. The Plaintiffss repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants had an affirmative duty to intervene on behalf of Plaintiffss, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein.

73. As a result of the foregoing, Plaintiffss' liberty were restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

76. Plaintiffss hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffss Jarod Nabors and Rahman Soto demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffss recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 25, 2017

/s/

By:

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 25, 2017

/s/

STUART E. JACOBS